

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024**:

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZlcVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

XYRA GARCIA,

Petitioner

VS.

NIKKO DESHAWN COLEMAN,

Respondent

) Case Number: FPT-25-378631

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Xyra Garcia (Mother) and Nikko Deshawn Coleman (Father) share one minor child, Rae'Lynn (DOB 5/8/2020, age 6).
- 2) On 5/12/2025, Mother filed a request seeking sole legal and sole physical custody and an order requiring Father to undergo drug testing and take an anger management class. She stated that Father had not seen Rae'Lynn due to his incarceration and that in April 2025, he refused to return Rae'Lynn to her care and had his family member pull a gun on Mother during a custodial exchange.
- 3) On 8/21/2025, Father filed a response stating he and his family cared for Rae'Lynn for the first year and a half of her life. He stated he was incarcerated from July 2023 to January 2025 but was told he could not see Rae'Lynn after he was released. He stated he would be able to provide Rae'Lynn with a good home.

- 1 4) At an 8/28/25 hearing, the Court awarded sole legal custody to Mother and joint physical custody
2 to the parties. Pursuant to the parties' agreement, the Court ordered that Father shall have
3 parenting time every weekend except the second weekend of the month and a phone call with
4 Rae'Lynn at 6:30pm every Tuesday and Thursday.
- 5 5) At a 12/4/2025 review hearing, the Court maintained sole legal custody to Mother and modified
6 Father's parenting time schedule so that Father's current parenting time is as follows: (a) Tuesday
7 school pickup at 5:30pm (or 4pm at the Concord Police Station if no school that day) until school
8 drop off on Wednesday morning (or 10am at the Concord Police Station if no school that day);
9 (b) Every weekend except the second weekend of every month, from Friday at 6:30pm at the
10 Concord Police Station to Sunday at 3:30pm at the Richmond Police Station; and (c) a phone call
11 with Raelynn every Thursday at 6:30pm.
- 12 6) On for hearing is Father's request filed 7/1/2026 in which he seeks joint legal custody with
13 parenting time from Thursday after school until Sunday at 6:30pm every weekend except the
14 second weekend. For the second weekend, he requests parenting time from Thursday after school
15 until Friday before school. He seeks joint legal custody so that he can fully participate in
16 decisions regarding Raelynn's school and health. He raises several concerns; he states, for
17 example, that Raelynn wears clothes that do not fit her well, that she is frequently ill, and that she
18 has excessive school absences. He attaches Raelynn's school attendance records for the period
19 ending 3/27/2026 that show 20 absences (2 of them unexcused) and 3 tardies in 133 days of
20 enrollment.
- 21 7) Mother filed a response in which she asks to retain sole legal custody and for Father to have
22 parenting time every other Friday after school until Saturday at 4:30pm. She states that Father
23 "frequently cancels his Tuesday parenting time at the last minute or fails to exercise it altogether"
24 and has failed to pick up Rae'Lynn from school on multiple occasions. Mother states this has
25 caused her to lose 3 jobs from having to rearrange her work schedule and to incur childcare costs,
26 which she states is especially problematic because she is the one who financially supports
27 Rae'Lynn. Mother states that Father also fails to help Rae'Lynn with her weekend homework and
28 that having her return earlier to Mother's care will better ensure the homework is completed.
29 Mother denies Father's allegations regarding Rae'Lynn's clothes, education, and health and

1 explains that Rae'Lynn's absences were due to documented illness. Mother also expresses
2 concern about her safety. She states that at Rae'Lynn's graduation on 6/8/2026, Father's family
3 members attempted to physically assault her in front of Rae'Lynn and Father did not intervene.
4 She states that on 7/8/2026, Father failed to return Rae'Lynn to Mother and that despite a police
5 civil stand-by, he did not comply with the order and withheld Rae'Lynn for 3 days.

6 **B. Findings and Orders**

- 7 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
8 Custody Jurisdiction and Enforcement Act. The country of habitual residence of the minor child
9 is the United States.
 - 10 2) Legal Custody – The Court finds it is in Rae'Lynn's best interests to maintain sole legal custody
11 to Mother. Father shall be entitled to Rae'Lynn's medical and school records and shall be listed
12 as an emergency contact for Rae'Lynn for her school.
 - 13 3) Physical Custody – Commencing 9/18/2026, Father shall have parenting time on alternating
14 weekends, from Friday after school pickup at 5:30pm (or at 4pm at the Concord Police Station if
15 no school that day) to Monday morning school drop off (or at 10am at the Richmond Police
16 Station if no school). If Father is unable to exercise his parenting time, he shall notify Mother
 - 17 4) The parties shall ensure that Rae'Lynn attends school regularly and on time during their custodial
18 days and shall ensure that Rae'Lynn completes her school assignments and homework during
19 their custodial days.
 - 20 5) A violation of Court orders may subject the party in violation to civil or criminal penalties, or
21 both. Any failure to comply with these Court orders may result in a reduction of that party's
22 parenting time.
 - 23 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTOPHER MARSH,

Petitioner

VS.

VESNA MARSH,

Respondent

) Case Number: FDI-15-783933

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9:00 AM on 9/8/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

Wife shall be prepared to explain whether she agrees to Husband's proposal. Both parties shall be prepared to provide their position on how the fees for a third-party tax professional should be allocated between the parties.

A. Procedural History

1) Petitioner Christopher Marsh (Husband) and Respondent Vesna Marsh (Wife) entered into a Stipulated Judgment which was filed on 11/24/2021. Both parties are currently self-represented.

2) Paragraph 3(G) of the Stipulated Judgment filed on 11/24/2021 provides in relevant part:

- a. "Vesna is awarded the following retirement accounts and all funds held therein: Aviva/Tk Account xxx-8658, and...Aviva/Tk Account xxx-1899. The accounts are currently in Chris' name. The parties will meet and confer and work together in preparing the necessary documents for the accounts to be transferred to Vesna's name. The cost of

1 preparation of any documents necessary to effectuate the transfer shall be split 50/50
2 between the parties.”

3 3) No substantive pleadings were filed in this matter since entry of Judgment until Wife filed the
4 instant Request for Order on 3/13/2026. Wife states that Aviva, which is a United Kingdom
5 pension entity, has informed Wife that it requires an England and Wales pension sharing order
6 before it can transfer the Aviva accounts into Wife’s name. Wife states that at the time of
7 settlement, she agreed to accept Husband’s Aviva UK pension interests because she “understood
8 their value to be roughly equivalent to a premarital gift from my parents that was at issue in the
9 settlement discussions” but she “did not then understand the later implementation problems
10 associated with transferring those pension interests under United Kingdom rules.” Wife states she
11 has attempted to work with Husband regarding these issues but he has not been cooperative and
12 he failed to sign a Letter of Authority to authorize her to obtain plan-specific information from
13 Aviva directly.

14 4) At the prior 5/26/2026 hearing, neither party appeared and the party adopted its Tentative Ruling
15 without object from either party. As memorialized in the Findings and Order After Hearing filed
16 6/18/2026, the Court ordered the parties to do the following:

- 17 a. Wife shall draft a Letter of Authority which authorizes Wife to obtain information
18 regarding Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 directly from
19 Aviva. The Letter of Authority shall contain the information outlined by the Aviva
20 Customer Services Representative in Wife’s Exhibit E.
- 21 b. Within 48 hours of being presented with the Letter of Authority drafted by Wife,
22 Husband shall sign and date the letter and return the letter to Wife.
- 23 c. Husband shall forthwith investigate what he can do to have Aviva/Tk Account xxx-8658
24 and Aviva/Tk Account xxx-1899 transferred into Wife’s name and take any steps
25 necessary to effectuate those transfers.
- 26 d. A review hearing is set for Tuesday, 8/4/2026 at 9:00 AM in Dept. 404 for the Court to
27 review Husband’s compliance with the orders set forth above and for the Court to
28 consider Wife’s request to award Wife an equalizing offset from Husband’s other
29 property or assets if direct transfer of the Aviva pension interests cannot be completed.

- 1 5) On 7/23/2026, Wife filed a Declaration. Wife states she prepared a Letter of Authority and
2 Husband signed it. Wife also states the Letter of Authority was transmitted to Aviva and Aviva
3 acknowledged receipt. Wife further states that Aviva provided statements showing that the stated
4 transfer value of the two plans as of 6/7/2026 was £187,652.60.
- 5 6) At the prior 8/4/2026 hearing, both parties appeared. The Court set a further review hearing on
6 9/8/2026 and ordered Husband to file and serve an update declaration regarding his proposal as to
7 how he planned to transfer the funds from the Aviva accounts to Wife, how the taxes would be
8 handled, and at what age he could start withdrawing funds.
- 9 7) On 8/28/2026, Husband filed a Declaration. Husband states that the combined value of the
10 pension policies is £191,000. Husband states that a direct transfer or division of the policies has
11 proven impracticable “because of the administrative and cross-border complications associated
12 with transferring UK pension assets to my former spouse in the United States.” Husband states he
13 becomes eligible to access the pension funds in December 2026 when he reaches age 55.
14 Husband proposes that he retain a CPA with experience in U.S.-UK cross-border taxation and UK
15 distributions to U.S. citizens. Specifically, Husband states he will liquidate the pension assets in a
16 single or multiple withdrawal depending on the advice of the cross-border tax
17 professional. Husband states Aviva may be required to deduct UK income tax and because he is
18 a United States citizen and taxpayer there may be U.S. taxes as well. Husband proposes that he
19 give Wife the “final amount after tax settlement.” Husband also states that if the final tax position
20 cannot reasonably be determined before substantial pension proceeds become available, he will
21 transfer available proceeds subject to later refunds and credits from Wife. Husband states that he
22 will need a tax professional to advise him regarding: (a) the portion of each pension withdrawal
23 taxable in the UK, (a) the portion of each pension withdrawal taxable in the UK, (b) the amount
24 of UK tax properly due, (c) the amount of any temporary or emergency UK tax withholding, (d)
25 the amount of any UK tax refund or rebate available, (e) the U.S. tax basis, if any, associated with
26 the pension policies, (f) the portion of the pension distributions taxable in the United States, (g)
27 the availability and amount of U.S. foreign tax credits arising from UK tax paid, (h) whether
28 withdrawal in one payment or a limited number of payments materially affects the combined UK
29

1 and U.S. tax liability, and (i) the fastest reasonably practicable withdrawal method that does not
2 create a material and unnecessary additional tax cost.

3 8) There is no Proof of Service demonstrating service of Husband's declaration on Wife.

4 9) Wife has not filed a declaration since the prior 8/4/2026 hearing.

5 **B. Findings and Order**

6 1) **The parties are ordered to appear. Wife shall be prepared to explain whether she agrees to**
7 **Husband's proposal. Both parties shall be prepared to provide their position on how the**
8 **fees for a third party tax professional should be allocated between the parties.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARY FRANCES YATES FIECHTER,

Petitioner

VS.

FREDERICK CHARLES FIECHTER IV,

Respondent

) Case Number: FDI-15-784320

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

AMENDED ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT; PETITIONER'S
DEMURRER TO CONTEMPT

TENTATIVE RULING

Per agreement of the parties, the hearing on Jill McInerney's Order to Show Cause and Affidavit for Contempt filed 3/23/2026 and Mother's Demurrer to Order to Show Cause for Contempt filed 7/8/2026 is hereby vacated. Attorney Andrew Quan is relieved as contempt counsel for Mother.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTHONY BRACE,

Petitioner

VS.

NAUVANIE XAVIER,

Respondent

) Case Number: FDI-23-798381

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
MONEY FOR EMERGENCY HOUSING

TENTATIVE RULING

The parties are ordered to appear at 9:00 AM on 9/8/2026 in Department 404 in-person or by Zoom video to discuss Wife's 8/13/2026 Request for Order. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Anthony Brace (Husband) and Respondent Nauvanie Xavier (Wife) married on 11/11/2011. Husband contends the parties separated on 7/4/2023, for a marriage of 11 years and 7 months. Wife did not specify a date of separation in her Response to the Petition. The parties have no minor children. Husband is represented by Schneider Law. Wife's prior attorney Armin Najafi substituted out of this case on 7/1/2026. Wife is currently self-represented.
- 2) On 1/23/2025 (Findings and Order After Hearing filed 1/31/2025), Judge Costin ordered Husband to pay Wife \$1,156 per month in temporary guideline spousal support (plus \$250 per month for the \$4,474 in temporary spousal support arrears owed by Husband for the period 10/4/2024 –

1 1/31/2025). Judge Costin also ordered Wife to spend 10 hours per week in job search related
2 activities, apply for a minimum of 20 jobs per week, and serve written logs of her job search
3 activities each month. The guideline calculation is based on Husband's earning \$5,064 per month
4 in wages and \$1,420 per month in other taxable income, and Wife's earning \$1,935 per month in
5 unemployment compensation.

6 3) On 4/11/2025, the parties appeared for a Mandatory Settlement Conference, but a settlement was
7 not reached.

8 4) On 5/20/2025 (Findings and Order After Hearing filed 5/21/2025), Judge Costin ordered Husband
9 to pay \$15,000 directly to Wife's attorney for Family Code section 2030 attorney's fees. Judge
10 Costin also included the following language in her order: "The Court finds that Wife's work
11 search efforts are lacking as it appears that Wife has only applied to three jobs in the last four
12 months, and only at UCSF, who previously terminated her employment involuntarily. A good
13 faith search for work under the circumstances would involve Wife applying to multiple other jobs
14 with other employers and pursuing all openings in a reasonable commute distance in good
15 faith...Wife is reminded that it is the goal of this state that each party will make reasonable good
16 faith efforts to become self-supporting as provided in Family Code section 4320. Wife is on
17 notice that failure to make reasonable good faith efforts to become self-supporting may be one of
18 the factors considered by the Court as a basis for modifying or terminating spousal support."

19 5) On 8/15/2025, the parties appeared before Judge Luna for a Judicial Settlement Conference, but a
20 settlement was not reached.

21 6) The parties previously had a 3-day trial set in June 2026 before Judge Chan on the issues of date
22 of separation, division of assets and debts, spousal support, medical fees, attorney's fees,
23 reimbursements, credits, and breach of fiduciary duty. However, per the Stipulation and Order
24 filed 4/30/2026, the parties agreed to vacate the June 2026 trial dates and set a future trial setting
25 date on 9/21/2026 in Dept. 405.

26 7) On 7/17/2026, Wife filed an Income and Expense Declaration. Wife states that she is 54 years old
27 and has been unemployed since 9/16/2024. Wife states that her only source of income is \$1,406
28 per month in spousal support (it is not known why this figure does not match the \$1,156 per
29 month Husband is under an order to pay Wife per month). Wife states she has \$56 in cash savings

1 and lists no other assets. Wife states that she owes student loans and taxes, but does not specify an
2 amount. Wife states that her monthly expenses total \$2,395.

3 8) On 8/3/2026, Husband filed an Income and Expense Declaration. Husband states that he is 62
4 years old and is a stationary engineer for the University of Pittsburgh Medical Center. Husband
5 states that he is paid \$5,720 per month in wages and he earned \$2,268 in overtime last month.
6 Husband also states that he earns \$1,464 per month in pension / retirement fund payments.
7 Husband states that he has \$1,200 in cash and \$280 in easily saleable investments. Husband owes
8 nearly \$70,000 in debt, including a \$15,875 auto loan, credit card debt, and for medical bills.
9 Husband states that his monthly expenses total \$5,348.

10 9) On for hearing is Wife's Request for Order filed 8/13/2026. Wife requests that the Court modify
11 the current spousal support order to \$3,040 per month so she can pay for rent. Wife also requests
12 \$16,000 in attorney's fees. Wife did not file a declaration explaining the bases for her requests.

13 10) On 9/1/2026, Husband filed a Responsive Declaration. Husband asks the Court to deny Wife's
14 requests. Husband states, "Respondent has not provided the appropriate documentation and
15 information required to review/support her requests for a modification of Spousal Support, or to
16 review/support her request for Attorney's Fees and Costs... Respondent's previous attorney,
17 Armin M. Najafi, Esq., should be called into Court to justify why the \$11,990.40 in Attorneys
18 Fees and Costs was used up in this matter when he never did anything in the case over the past
19 year and a half after being retained. He essentially Substituted out of the case after being paid the
20 only funds we had available for Respondent to seek counsel. There are no sources to be able to
21 pull funds for additional attorney's fees and costs, and I have no funds left to afford to keep my
22 own attorney retained through Trial, which is coming up. My pending motion also requests
23 termination of Support for Respondent based on her continued non-compliance with Court
24 Orders."

25 11) The Court notes there is a future hearing date currently set for 12/4/2026 in Dept. 405A on
26 Husband's Request for Order filed 8/3/2026 on the Husband's requests to:

- 27 a. Order Wife to immediately produce a list of documents specified by Husband
- 28 b. Order issue and evidentiary sanctions
- 29 c. Order Wife to pay attorney's fees sanctions

- d. Terminate or in the alternative reduce temporary spousal support
- e. Impute income to Wife
- f. Order Wife to fully and timely comply with all future Seek Work Order obligations, including monthly production of logs
- g. Order Wife to sign any and all documents necessary for Moon Schwartz & Madden to obtain information directly from third parties including the University of California and the Stationary Engineers Local 39 Annuity Plan

B. Findings and Order

- 1) **The parties are ordered to appear to discuss Wife's 8/13/2026 Request for Order.**
- 2) On the Court's own motion, the Court sets a future hearing date of **12/8/2026 at 9:00 AM in Dept. 404** on the following issues from Husband's 8/3/2026 Request for Order:
 - a. Husband's request to terminate or in the alternative reduce temporary spousal support
 - b. Husband's request to impute income to Wife
 - c. Husband's request for an order for Wife to fully and timely comply with all future Seek Work Order obligations, including monthly production of logs
 - d. Husband's request for an order for Wife to sign and any all documents necessary for Moon Schwartz & Madden to obtain information directly from third parties including the University of California and the Stationary Engineers Local 39 Annuity Plan
- 3) The following issues from Husband's 8/3/2026 Request for Order shall remain on calendar for 12/4/2026 in Dept. 405A:
 - a. Husband's request for an order for Wife to immediately produce a list of documents specified by Husband
 - b. Husband's request for issue and evidentiary sanctions
 - c. Husband's request for attorney's fees sanctions related discovery

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COREY DEROUNCE ROYAL-MILLION,

Petitioner

VS.

TONY JOHN ROYAL-MILLION,

Respondent

) Case Number: FDI-24-800431

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Corey Royal-Million (Petitioner) and Tony Royal-Million (Respondent). The parties married on 10/22/2017. Petitioner contends the parties separated on 6/26/2023, for a marriage of 5 years and 8 months. Respondent asserts the parties separated on 1/22/2019, for a marriage of 1 year and 3 months. The parties have no minor children in common. Both parties are self-represented.
- 2) On 1/22/2019, a Criminal Protective Order was issued for Respondent's protection against Petitioner. The CPO expired on 1/22/2022.
- 3) On 7/29/2021, a 3-Year Restraining Order After Hearing was entered for Petitioner's protection against Respondent in related Case No. FDV-21-815745. It expired on 7/28/2024.
- 4) On 11/21/2025, a 5-Year Restraining Order After Hearing was entered for Respondent's protection against Petitioner in related Case No. FDV-17-813401. It is set to expire on 11/21/2030.

1 5) Now on for hearing is Petitioner's Order to Show Cause and Affidavit for Contempt filed
2 7/7/2026. Petitioner alleges the following:

- 3 a. Respondent violated the restraining order filed on 7/29/2021 which required Respondent
4 to attend a 52 week batterers' intervention program.
- 5 b. Respondent violated the restraining order filed on 7/29/2021 by emptying a storage unit
6 in his name and discontinuing payments on the jointly used storage unit (leading to the
7 unit being auctioned).
- 8 c. In July 2022, Respondent took community or separate property belonging to Petitioner
9 including an electric scooter, wallet, identification cards, bank cards, and tumi satchel.
- 10 d. Respondent mismanaged financial accounts during the marriage.
- 11 e. Respondent refused to provide emotional support when Petitioner's grandparents passed
12 away in May 2022 and refused to provide financial assistance for Petitioner to fly to
13 Texas to attend his grandparents' funerals.
- 14 f. Respondent used community resources for personal benefit while refusing to contribute
15 to Petitioner's basic necessities during marriage.

16 Petitioner requests:

- 17 a. Value of property lost due to storage-unit auction.
- 18 b. Lien fees, penalties, and administrative charges.
- 19 c. Replacement value of stolen property.
- 20 d. Loss of cash and personal effects taken by Respondent.
- 21 e. Reimbursement claims arising from undisclosed accounts and misappropriated funds.
- 22 f. Tax exposure from unreported assets and account activity.
- 23 g. Legal fees required to pursue enforcement and contempt motions.

24 6) Per the Proof of Service filed 8/24/2026, Petitioner's Order to Show Cause was personally served
25 on Respondent on 8/21/2026.

26 7) On 8/26/2026, Respondent filed a Responsive Declaration. Respondent asks the Court to dismiss
27 the contempt charges on the following grounds. In the alternative, Respondent asks the Court to
28 appoint legal counsel to represent Respondent. Respondent states:

- 29 a. Petitioner does not set forth proper individual counts.

- 1 b. The only identifiable year mentioned is 2022 and California contempt actions are subject
2 to a two-year statute of limitations.
- 3 c. Petitioner improperly filed this contempt action in the FDI matter rather than in Case No.
4 FDV-21-815745.
- 5 d. Respondent was not served with the July 2021 restraining order until 4/3/2024, and by
6 that time no storage units existed.
- 7 e. The July 2021 restraining order permits Respondent to engage in individual therapy as an
8 alternative to a 52-week batterer intervention program. Respondent states he completed
9 52 weeks of individual therapy.

10 **B. Findings and Order**

- 11 1) The Court finds good cause to dismiss Petitioner's 7/7/2026 Order to Show Cause Re: Contempt
12 in its entirety because: (a) Petitioner failed to succinctly and separately plead each count, (b)
13 Petitioner did not explain which orders Respondent violated with respect to most of Petitioner's
14 allegations, (c) many of Petitioner's allegations are not the appropriate subject for contempt
15 charges, and (d) the allegations of contempt which occurred in 2022 are time-barred under Code
16 of Civil Procedure section 1218.5(b), which states that the statute of limitations for commencing a
17 contempt action to enforce an order under the Family Code (that is not a child or spousal support
18 order) is two years from the time the alleged contempt occurred.
- 19 2) Petitioner's request for legal fees to pursue his 7/7/2026 Order to Show Cause Re: Contempt is
20 denied.
- 21 3) Petitioner's requests for orders related to "value of property lost due to storage-unit auction; lien
22 fees, penalties, and administrative charges; replacement value of stolen property; loss of cash and
23 personal effects taken by Respondent; reimbursement claims arising from undisclosed accounts
24 and misappropriated funds; and tax exposure from unreported assets and account activity" are
25 denied without prejudice and may be addressed at trial.
- 26 4) The Court will prepare the Findings and Order After Hearing.
- 27
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEPHEN JOSEPH IRWIN,

Petitioner

VS.

GERMANO IRWIN,

Respondent

) Case Number: FDI-26-802716

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT FILED BY PETITIONER 07.07.26

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9:00 AM on 9/8/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) On 3/2/2026, in related Case No. FDV-26-818997, Petitioner Stephen Irwin filed a Request for Domestic Violence Restraining Order (DVRO) against Respondent Germano Irwin.
- 2) On 3/3/2026, Petitioner was granted a Temporary Restraining Order (TRO) against Respondent which includes an order for “[Respondent] to stop searching personal property of [Petitioner].”
- 3) According to the Proof of Service filed 3/10/2026, the TRO and other pleadings were personally served on Respondent on 3/9/2026.
- 4) On 3/16/2026, Respondent filed a Request for DVRO against Petitioner.
- 5) On 3/17/2026, Respondent was granted a Temporary Restraining Order against Petitioner.
- 6) On 7/7/2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt alleging that Respondent violated the Temporary Restraining Order. Petitioner states that on 4/6/2026

Respondent sent him a text message stating that Respondent “went to the apartment to check on the birds” and noticed that “some of my letters were open and in the trash.” Petitioner states he did not give Respondent permission to enter his residence or inspect his personal property. On 4/21/2026, Petitioner discovered Respondent had removed personal property, including Petitioner’s photo memory scrapbook and immigration-related file. Petitioner states he emailed Respondent’s attorney requesting that the items be returned, but Respondent has not returned the items. Petitioner asks the Court to find Respondent in contempt and order Respondent to immediately return Petitioner’s “original photo memory scrapbook and original immigration-related file, including affidavits, sponsor-related records, invoices, supporting documentation, financial records, personal identifying information, photographs, travel records, and other related personal records.” Petitioner further requests that Respondent be “ordered not to copy, destroy, alter, withhold, or use these materials except as permitted by the Court, and that any return occur through counsel, law enforcement, or other neutral method ordered by the Court.”

7) On 7/21/2026, Judge Gold denied both parties’ requests for a DVRO, and Case No. FDV-26-818997 was consolidated into Case No. FDI-26-802716.

8) On 9/1/2026, Respondent filed a Response to Order to Show Cause and Affidavit for Contempt. Respondent asks the Court to dismiss the OSC re: contempt because the underlying DVRO proceeding was dismissed on 7/21/2026. Additionally, Respondent denies there is an appropriate basis to find him in contempt and he reserves “all defenses to the allegations contained in the Order to Show Cause and Affidavit for Contempt.” Respondent does not address Petitioner’s allegations that he entered Petitioner’s residence without his consent or that Respondent is in possession of items belonging to Petitioner.

B. Findings and Order

1) **The parties are ordered to appear.**